

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: July 30, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
<u>LINE 1</u>	25CV461730	Narjes Naserbakht et al vs Kaiser Foundation Hospitals et al	Hearing: Minors Compromise Parties to appear.
<u>LINE 2</u>	25CV462873	Idea 247, Inc. vs Robert Nicol et al	Order of Examination Parties to appear.

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9:00 A.M.

Calendar Lines # 1-2

Case Name Pacific Office Automation, Inc. vs The Health Trust et al

Case No. 20CV366428

Motion to Tax Cost by Plaintiff/Cross-Defendant Pacific Office Automation, Inc. (Line # 1) and Motion for Attorneys' Fees by Defendant/Cross-Complainant the Health Trust (Line # 2).

LINE #1: MOTION TO TAX COST BY PLAINTIFF/CROSS-DEFENDANT PACIFIC OFFICE AUTOMATION, INC.

I. BACKGROUND

On November 5, 2025, Plaintiff Pacific Office Automation, Inc. ("POA") and Cross-Defendant Garret Dettner ("Dettner") filed a Motion to Tax Cost. The motion was accompanied by a proof of service via e-mail service on that same day. POA contends that Defendant The Health Trust ("Defendant" or "THT") seeks costs in their October 21, 2025 memorandum of costs that are not statutorily recoverable or reasonably necessary for the conduct of litigation. POA seeks an order striking or taxing eight specific items in the amount of \$15,151.05. Thereby, reducing THT's costs from \$47,545.24 to \$32,394.18.

Defendant THT filed opposition papers on April 17, 2026.

Plaintiff/Cross-Defendant filed a Reply brief on April 23, 2026.

The Court has carefully reviewed the Plaintiff/Cross-Defendant's and moving papers including a notice of motion and memorandum of points and authorities (totaling 12 pages); Declaration of Chris Kaltsas in support of the plaintiff/cross-defendant's moving papers with Exhibits A – C attached (totaling 45 pages); Request for Judicial Notice in Support of the motion (totaling 436 pages pages); Defendant Health Trust's opposition papers (totaling 12 pages); Declaration of Corey M. Day and attached Exhibits A - B (totaling 19 pages); plaintiff/cross-defendant's reply brief (totaling 11 pages) and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 1032(b), a prevailing party is entitled to cost. (*See also, Santisas v. Goodin* (1998) 17 Cal.4th 599, 606). Code of Civil Procedure section 1033.5 sets forth the costs recoverable by the prevailing party. "Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc., §1033.5(c)(2); *Perko's Enterprises, Inc. v. RRNS Enterprises* (1992) 4 Cal.App.4th 238, 244). A "properly verified memorandum of costs is considered prima facie evidence that the costs listed in the memorandum were necessarily incurred." (*Bach v. County of Butte* (1989) 215 Cal.App.3d 294, 308; *Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682; *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266; *Rappenecker v. Sea-Land Service, Inc.* (1979) 93 Cal.App.3d 256, 266).

Code of Civil Procedure Section 1033.5(a) sets for the following allowable items as costs:

- (1) Filing, motion, and jury fees.
- (2) Juror food and lodging while they are kept together during trial and after the jury retires for deliberation.
- (3) (A) Taking, video recording, and transcribing necessary depositions, including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed. (B) Fees of a certified or registered interpreter for the deposition of a party or